

Court No. - 3

Case :- WRIT - C No. - 34157 of 2023

Petitioner :- Dhanraj Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Mohd. Samiuzzaman Khan, Abdul Momin

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Learned counsel for the Electricity Department may take instructions in the matter as to how the order dated 5.8.2022 has been passed without complying with the provisions of Clause 8.1 of the U.P. Electricity Supply Code, 2005.

Put up this case as a fresh case on 23.11.2023.

Order Date :- 7.11.2023

vkj

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Petitioner :- Dhanraj Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Mohd. Samiuzzaman Khan, Abdul Momin

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

1. This writ petitioner has been filed against the final assessment order on the ground that the petitioner was not provided the opportunities to oppose the provisional assessment order as is provided under the Uttar Pradesh Electricity Supply Code, 2005. It has been stated that the petitioner was also not given an opportunity of personal hearing after he had submitted his reply on 21.02.2023. From the record it is not clear whether the opportunity of a personal hearing was given to the petitioner.

2. Learned counsel appearing for the Electricity Department states that if the petitioner appears before the Executive Engineer on 14.12.2023 then a personal hearing shall be given to the petitioner and thereafter order would be passed within a period of two months.

3. Under such circumstances, the order dated 05.08.2023 is quashed. The petitioner shall now appear before the Executive Engineer on 14.12.2023 alongwith all his records and shall be provided an opportunity of personal hearing. Thereafter, the final assessment order would be passed within a period of two months.

4. For a period of three months or till the decision is taken on the

final assessment order, whichever is earlier, no coercive action shall be taken against the petitioner.

5. With these observations, the writ petition stands **disposed of**.

Order Date :- 23.11.2023

M.S. Ansari

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)